

Amendment No. 1 to HB0039

White
Signature of Sponsor

AMEND Senate Bill No. 155

House Bill No. 39*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 49-6-417, is amended by deleting the section and substituting instead the following:

(a) This section is known and may be cited as the "Menstrual Hygiene Products Accessibility Act."

(b) As used in this section:

(1) "Eligible school" means a public school, including a public charter school, that is a senior high school, as defined in § 49-6-401; and

(2) "Feminine hygiene product":

(A) Means a product or material designed for feminine hygiene in connection with menstruation or other genital-tract secretions; and

(B) Includes tampons, panty liners, menstrual cups, sanitary napkins, and other similar personal products or materials.

(c) Subject to state appropriation, the department of education shall award grants to eligible schools to implement subsection (d). A grant awarded pursuant to this subsection (c) to an eligible school with an enrollment of:

(1) One thousand (1,000) or more students must be in an amount that is no more than four hundred fifty dollars (\$450);

(2) Five hundred (500) to nine hundred ninety-nine (999) students must be in an amount that is no more than three hundred fifty dollars (\$350); and

(3) No more than four hundred ninety-nine (499) students must be in an amount that is no more than two hundred dollars (\$200).

(d) An eligible school that receives a grant pursuant to subsection (c) shall provide feminine hygiene products, at no charge, to a student if the student does not otherwise have feminine hygiene products available for use.

(e) An LEA or public charter school may provide feminine hygiene products, at no charge, for student use in all women's and girls' bathrooms and locker rooms in an eligible school building where instruction is provided, excluding any bathrooms and locker rooms specifically designated for teacher or staff use.

(f) The department of education may develop policies and provide guidance to LEAs and public charter schools to assist LEAs and public charter schools in complying with this section.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.